

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephen Abrams-Downey	Team: Squad #01	CCRB Case #: 201502134	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 03/21/2015 12:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/21/2016	Precinct: 107
Date/Time CV Reported Mon, 03/23/2015 2:40 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 03/23/2015 2:40 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Amos Ryan	29041	939762	107 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Lenna Milligan	31154	920236	107 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Amos Ryan	Discourtesy: PO Amos Ryan spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint by phone with the CCRB on March 23, 2015 (encl. 4A-B).

On March 21, 2015 at approximately 12:30 p.m., § 87(2)(b) was in the driveway outside his house at § 87(2)(b), in Queens. A marked police car parked in § 87(2)(b) driveway and two uniformed officers, PO Rohan Shaw and PO Daniel Levy, exited the vehicle. After a few minutes, a second marked police vehicle arrived containing two uniformed officers, identified as PO Amos Ryan and PO Lenna Milligan. § 87(2)(b) approached these officers and asked them to move their cars because they were blocking his car. After they spoke for several minutes, PO Ryan allegedly referred to § 87(2)(b) as a “fucking asshole” (**Allegation A**). § 87(2)(b) then asked PO Ryan for his name and shield number. The officer provided this information by pointing to his chest and allowing § 87(2)(b) to write down the information. After a few minutes, an officer moved the police vehicle and § 87(2)(b) drove away. He did not have any further interactions with the officers. He was not arrested or issued a summons (Phone statement encl. 5A, CCRB interview encl. 5B-C).

Mediation, Civil, and Criminal Histories

§ 87(2)(b) accepted mediation during his initial phone statement on March 23, 2015. However, the case was returned for investigation on May 14, 2015 after PO Ryan rejected mediation. § 87(2)(b) did not file a Notice of Claim with the Office of the Comptroller regarding this incident (encl. 9B). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) filed one previous CCRB complaint. § 87(2)(b)
- PO Ryan has been a member of the NYPD for nine years and has had one previous case consisting of two allegations. In case 201108629 discourtesy and offensive language allegations were closed as complainant uncooperative (encl. 1A).

Findings and Recommendations

Identification of Subject Officers

In his CCRB interview, § 87(2)(b) said that he read the subject officer’s name as PO Ryan. According to § 87(2)(b) PO Ryan pointed to his nameplate immediately after making the alleged discourteous statements. In his CCRB statement, PO Ryan confirmed that he responded to the location and interacted with § 87(2)(b)

Recommendations

Allegation A—PO Amos Ryan spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that PO Ryan called him a “fucking asshole” after he asked the officers to move their car out of his driveway.

In his CCRB interview, PO Ryan confirmed that he interacted with § 87(2)(b) during the incident. However, he denied referring to § 87(2)(b) as a “fucking asshole” (encl. 6D-E). PO Milligan, who was PO Ryan’s partner at the time of the incident, told the CCRB that she did not hear PO Ryan or any other officer use profanity during this incident (encl. 7D-E).

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Team: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date